

Court No. - 3

Case :- WRIT - C No. - 37240 of 2023

Petitioner :- Sushil Kumar Kesharwani

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Sheo Kinkar Singh, Suryaprakash
Sharma

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Siddhartha Varma, J.

Hon'ble Manoj Bajaj, J.

Instructions filed today be kept on record. A copy of the instructions be also handed over to the learned counsel for the petitioner.

Put up this case on 30.11.2023 as fresh.

Order Date :- 17.11.2023

M.S. Ansari

(Manoj Bajaj, J.) (Siddhartha Varma, J.)

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Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Siddhartha Varma, J.

Hon'ble Shekhar B. Saraf, J.

Civil Misc. (Amendment) Application No.2 of 2023

By means of this application, the petitioner seeks amendment in the writ petition.

The application is allowed.

Learned counsel for the petitioner shall file amended copy of the writ petition, after serving the same to learned counsel for the Electricity Department and learned Standing Counsel, by the next date fixed in the writ petition.

Put up the writ petition as fresh on 14.12.2023.

Order Date :- 30.11.2023

Rakesh

(Shekhar B. Saraf, J.) (Siddhartha Varma, J.)

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Sharma

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Siddhartha Varma, J.

Hon'ble Shekhar B. Saraf, J.

Learned counsel for the petitioner prays for further time to comply with the order dated 30.11.2023.

Put up this case as fresh on 04.01.2024.

Order Date :- 14.12.2023

Kuldeep

(Shekhar B. Saraf, J.)

(Siddhartha Varma, J.)

Court No. - 21

Case :- WRIT - C No. - 37240 of 2023

Petitioner :- Sushil Kumar Kesharwani

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Sheo Kinkar Singh, Suryaprakash Sharma

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, Acting Chief Justice

Hon'ble Kshitij Shailendra, J.

1. Learned counsel appearing for the respondent, Electricity Department, is granted time to ascertain whether the procedure prescribed under the U.P. Electricity Supply Code, 2005 for making assessments in case of unauthorized use of electricity was followed in the instant case or not.

2. List as fresh on 17 January 2024.

Order Date :- 4.1.2024

Mukesh Kr.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, A.C.J.)

Court No. - 21

Case :- WRIT - C No. - 37240 of 2023

Petitioner :- Sushil Kumar Kesharwani

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Sheo Kinkar Singh, Suryaprakash Sharma

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta, Acting Chief Justice
Hon'ble Kshitij Shailendra, J.

1. The petitioner has called in question the final assessment bill dated 22.11.2022 and the recovery notice dated 25.09.2023.
2. Shri N.K. Tiwari, learned counsel for the respondent-Electricity Department states that the impugned recovery notice has been kept in abeyance and that petitioner will be given an opportunity of hearing and a fresh order will be passed.
3. The communication sent in this regard by Executive Engineer to Additional District Magistrate, Finance and Revenue, Prayagraj dated 11.01.2024 has been placed before us.
4. Having regard to the aforesaid stand of the respondents, we quash the final assessment bill and leave it open to the respondents to proceed in the matter afresh, in accordance with law.
5. The petition stands disposed of.

(Kshitij Shailendra, J.)

(Manoj Kumar Gupta, A.C.J.)

Order Date :- 17.1.2024

Mukesh Pal